

Orbis

Prevention of Sexual Harassment (POSH) Policy

Category	Conduct
Policy Owner	Human Resources & Internal Committee
Effective Date	January 1, 2026
Next Review Date	January 1, 2028
Statute	Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013
Applies To	All employees, contractors, interns and visitors

1. Purpose and Commitment

Orbis is committed to a workplace free from sexual harassment. This Policy is framed under the Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013 and the rules made under it. It applies at Orbis premises, at any location an employee visits for work, at work-related travel and events, and to work-related communication on any platform, including messaging and video calls.

2. What Counts as Sexual Harassment

Sexual harassment includes any unwelcome act or behaviour, whether directly or by implication:

- Physical contact or advances.
- A demand or request for sexual favours.
- Sexually coloured remarks, jokes, or messages.
- Showing pornography or sexually explicit material.
- Any other unwelcome physical, verbal or non-verbal conduct of a sexual nature.

The following, when connected to such conduct, also amount to harassment: an implied promise of preferential treatment; a threat of detrimental treatment; a threat about present or future employment status; interference with work or creating a hostile working environment; and humiliating treatment likely to affect health or safety.

Whether conduct is unwelcome is judged from the perspective of the person experiencing it, not the intent of the person doing it.

3. Internal Committee

Orbis has constituted an Internal Committee (IC) to receive and inquire into complaints. Its composition follows Section 4 of the Act:

Role	Held By	Requirement
Presiding Officer	A senior woman employee	Mandatory
Member (employee)	Two employees committed to the cause of women, or with legal or social-work experience	Minimum two
External Member	A person from an NGO or association familiar with issues of sexual harassment	Mandatory

At least half of the IC members are women. Members are appointed for three years. The current membership and contact details are published on the intranet and displayed at every office location. Any employee may contact the IC directly; going through a manager is not required.

4. How to Complain

A written complaint should be made to the Internal Committee within three months of the incident, or within three months of the last incident in a series. The IC may extend this period for reasons recorded in writing where circumstances prevented an earlier complaint.

- Complaints may be submitted by email to the IC, in a sealed envelope marked **Private and Confidential**, or in person to any IC member.
- Where the complainant cannot complain in writing, any IC member will provide reasonable assistance to put the complaint in writing.
- If the complainant is unable to complain due to physical or mental incapacity or death, a relative, friend, co-worker or any person with knowledge of the incident may complain with their written consent.

5. Inquiry, Timelines and Interim Relief

Stage	Timeline
Acknowledgement of complaint	Within 3 working days
Copy of complaint sent to respondent	Within 7 working days
Respondent's written reply	Within 10 working days of receipt
Completion of inquiry	Within 90 days
IC report to the employer	Within 10 days of completing the inquiry
Action on recommendations	Within 60 days of the report

Before or during the inquiry, and on the complainant's written request, the IC may recommend interim measures: transferring either party to another team or location, granting the complainant up to three months' additional leave over and above their entitlement, or restraining the respondent from reporting on the complainant's work performance.

Both parties are given an opportunity to be heard and to receive a copy of the findings. Neither party may bring a legal practitioner to represent them before the IC. Conciliation may be attempted if the complainant requests it, but no monetary settlement may form the basis of conciliation.

6. Outcome

Where an allegation is proved, the IC may recommend action under the Code of Conduct, including a written apology, warning, censure, withholding of a promotion or increment, termination of employment, or counselling. It may also recommend that compensation be deducted from the respondent's salary and paid to the complainant, taking into account the mental trauma caused, loss of career opportunity, medical expenses, and the respondent's income.

7. Confidentiality

The identity of the complainant, the respondent, the witnesses, the contents of the complaint, the inquiry proceedings and the recommendations are confidential and must not be published or made known to the public or the press. Breach of confidentiality is itself a disciplinary matter and attracts a penalty under the Act.

8. Protection Against Retaliation

No person who makes a complaint in good faith, or who assists an inquiry as a witness, will be subjected to any adverse consequence. Retaliation includes dismissal, demotion, exclusion from work, an unjustified change in duties or rating, or further harassment, and is treated as serious misconduct. This protection applies even where a complaint is not ultimately substantiated.

9. Complaints Made in Bad Faith

A complaint made in good faith that the IC cannot substantiate carries no consequence for the complainant. Where the IC concludes that a complaint was malicious, or that false evidence was produced, it may recommend action — but the mere inability to substantiate a complaint does not, by itself, attract any action.

10. Awareness and Training

Every employee must complete POSH awareness training within 30 days of joining, and a refresher every 12 months thereafter. Completion is recorded in the HR system and can be checked there at any time. Managers are responsible for their team's completion. IC members receive additional capacity-building training annually.

11. Annual Reporting

The IC prepares an annual report recording the number of complaints received and disposed of, cases pending more than 90 days, workshops conducted, and action taken. This is filed with the District Officer and summarised in the Board report, without identifying any individual.

12. Related Policies

Complaints of harassment that are not sexual in nature are handled under the Grievance Redressal and Whistleblower Policy. General standards of behaviour are set out in the Code of Conduct and Ethics.